

25NWCV02717 25NWCV02717

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Case Number: 25NWCV02717 Hearing Date: August 7, 2026 Dept: D

SARA BEATRIZ PARRA, ET AL. V. GENERAL MOTORS, LLC

CASE NO.: 25NWCV02717

HEARING: 08/07/2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

Plaintiffs Sara Beatriz Parra and Angela Maria De Alba's motion for attorneys' fees is GRANTED.

Defendant General Motors, LLC is ordered to pay the awarded amount within 90 days of this Order.

Moving party to give notice.

Plaintiffs Sara Beatriz Parra and Angela Maria De Alba (collectively, Plaintiffs) move for an order granting attorney's fees, costs and expenses in the total amount of \$18,345.65.

Background

On July 28, 2025, Plaintiffs filed the operative complaint against Defendant General Motors, LLC (Defendant) and Does 1 through 10, inclusive, asserting three causes of action: (1) Breach of Express Warranty; (2) Breach of Implied Warranty; and (3) Violation of the Song Beverly Act Section 1793.2.

On March 16, 2026, Plaintiffs filed their motion for attorneys' fees, costs, and expenses.

On June 23, 2026, Defendant filed an opposition.

On July 7, 2026, on its own motion, the Court continued the hearing for attorney's fees because Plaintiffs reply was filed timely but was not processed correctly by the Clerk's office. The Clerk's office processed Plaintiff's reply that same day.

Legal Standard

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)¿

Analysis

Plaintiffs move for an order granting attorney's fees, costs, and expenses in the total amount of \$18,345.65.

Here, it is undisputed that Plaintiffs are the prevailing party in this action and are entitled to reasonable attorneys' fees. The only issue pending before this court is the amount of the award.

Reasonableness of Hourly Rate

Plaintiffs' counsel requests an hourly rate of \$450 for attorney Diba Alemi. (Alemi Decl., ¶ 3.) In support of the requested rate, counsel cites cases approving his hourly rate in comparable matters and relies on the 2019 United States Consumer Law Attorney Fee Survey Report. (Id. at ¶ 5.)

The matter of the reasonableness of attorney fees is within the sound discretion of the trial court. (Bruckman

v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) Normally, a reasonable hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

Based on counsel's supporting evidence and the Court's familiarity with prevailing market rates for comparable warranty litigation in this community, the Court finds that an hourly rate of \$450 is reasonable. Additionally, Defendant does not challenge the reasonableness of the requested hourly rate in its opposition.

Reasonableness of Hours Billed

The trial court has an obligation to award only those attorneys' fees that are reasonable. (See PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).) Although a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred," (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682), counsel still has the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.)

Plaintiffs initially sought an award of attorney's fees based on 35.1 hours of work. In their reply, however, Plaintiffs acknowledge a clerical billing error in the calculation of one time entry and voluntarily reduce their requested attorney's fees by \$117.00, from \$15,795.00 to \$15,678.00.

The Court has reviewed and considered Plaintiffs' counsel's attached billing record and determined the following time-allocations to be unreasonable:

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Plaintiffs'

counsel billed 1.9 hours on July 28, 2025 to draft the Complaint and prepare the civil case cover sheet, addendum, and summons. While the Court recognizes that counsel must tailor the pleading to the facts of this case, the Complaint is a routine

Song-Beverly pleading and many of the accompanying documents are standardized. The Court finds that 1.5 hours was reasonably necessary for these tasks. Accordingly,

the Court will strike 0.4 hours from Plaintiffs' motion.

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Plaintiffs'

counsel billed 1.9 hours on October 22 and 23, 2025 to prepare Plaintiffs' initial disclosures and document production. Although the preparation of initial disclosures is compensable, the disclosures required under Assembly Bill 1755 are largely standardized. The Court finds that 1.5 hours was reasonably necessary for these tasks. Accordingly, the Court will strike 0.4 hours from Plaintiffs' motion.

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Plaintiffs'

counsel billed 6.7 hours on December 1 and 30, 2025 to prepare Plaintiffs for their depositions and prepare for Defendant's PMQ deposition. While preparation for depositions is compensable, the Court finds the time billed excessive in light of the relatively straightforward issues presented in this routine Song-Beverly action and counsel's prior familiarity with the relevant documents. The Court finds that 5.0 hours was reasonably necessary to prepare for these depositions. Accordingly, the Court will strike 1.7 hours from Plaintiffs' motion.

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Plaintiffs'

counsel billed 6.7 hours on March 12 and 16, 2026 to prepare the instant motion for attorney's fees, review and audit billing, prepare the supporting declaration and exhibits, prepare the memorandum of costs, review Defendant's opposition, draft the reply, and attend the hearing. While Plaintiffs are entitled to recover reasonable fees incurred in preparing and litigating a fee motion, the Court finds the time claimed excessive for this routine Song-Beverly matter. The Court finds that 4.0 hours was reasonably necessary to prepare the motion, review the opposition, prepare the reply, and attend the hearing. Accordingly, the Court will strike 2.7 hours from Plaintiffs' motion.

(Alemi Decl., ¶ 4, Ex. A.)

Defendant argues that all pre-litigation work should be excluded because it was performed before the Complaint was filed. (Opp., 3.)

The Court disagrees. Civil Code section 1794, subdivision (d) permits recovery of attorney's fees reasonably incurred "in connection with the commencement and prosecution" of the

action. (Civ. Code, § 1794, subd.

(d).) Here, counsel's pre-litigation

work, including communicating with Plaintiffs, reviewing and organizing the vehicle's repair history, assessing potential claims, preparing a repair order summary, and drafting a pre-suit demand letter, was reasonably necessary to investigate the claims and facilitate the commencement of this action. Accordingly, the Court declines to strike these entries.

Accordingly, the Court will strike a total of 5.2 hours from the fee request.

Memorandum of Costs

A verified

memorandum of costs is prima facie evidence concerning the reasonableness of costs and expenses claimed by the Plaintiff. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary."

(*Ladas v. California State Auto.*

Assn. (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs". (Id.)

Plaintiffs filed a costs memorandum seeking \$2,550.65, in litigation costs related to filing and motion fees, service of process, and electronic filing or service.

In opposition, Defendant argues that Plaintiffs have failed to establish that their requested costs were actually incurred or reasonably necessary. Specifically, Defendant objects to Plaintiffs' claimed deposition costs, electronic filing and service fees, and "other" costs, arguing that Plaintiffs failed to provide invoices, itemized statements, or other supporting documentation substantiating the expenses. (Opp., pp. 4-5.) Defendant further contends that the deposition costs are not recoverable because the transcripts were not court-ordered and Plaintiffs have not demonstrated that they were reasonably necessary to the litigation. (Ibid.)

The Court declines to tax Plaintiffs' claimed deposition costs. Deposition costs are expressly recoverable if

reasonably necessary to the conduct of the litigation. (Code Civ. Proc., § 1033.5, subd. (a)(3)(A).) Plaintiffs

have submitted an invoice substantiating the expense, and the Court finds the deposition costs were reasonably necessary to the prosecution of this action.

The Court further declines to tax Plaintiffs' electronic filing and service fees. Plaintiffs have submitted invoices supporting these expenses, and the Court finds they were reasonably necessary to the conduct of the litigation.

The Court also declines to tax Plaintiffs' claimed mediation costs. Although listed under "Other Costs" on the Memorandum of Costs, Plaintiffs have submitted a paid invoice establishing the expense. The Court finds the mediation costs were reasonably necessary to the conduct of the litigation and recoverable in the Court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).)

Accordingly, the Court awards Plaintiffs their requested litigation costs in the amount of \$2,550.65.

Conclusion

Based on the foregoing, Plaintiffs Sara Beatriz Parra and Angela Maria De Alba's motion for attorneys' fees is GRANTED in the total amount of \$15,888.65, representing attorney's fees in the amount of \$13,338.00 and litigation costs in the amount of \$2,550.65.

Defendant General Motors, LLC is ordered to pay the awarded amount within 90 days of this Order.